Insurance. Vendor, at its expense, shall purchase and maintain in effect at all times throughout the duration of the Agreement, all insurance requirements and limits as set forth below. Policies providing such limits of coverage via a primary policy plus an umbrella or following form excess policy will be satisfactory. All insurance shall be written by a carrier legally authorized to write such insurance in the state of Colorado provided the carrier has a current A.M. Best rating of A- VII or higher. All policies shall be primary and non-contributory with any insurance maintained by additional insureds. Insurance and/or self-insurance carried by the District is excess of the coverage extended to the District by Vendor. Vendor shall provide at least thirty (30) days' advance written notice to the District prior to cancellation, change of coverage, or non-renewal. The insurance requirements specified herein shall not reduce the indemnification liability that Vendor has assumed elsewhere in this Agreement.

Vendor shall furnish the District with certificates of the required insurance prior to the District's approval and signing of this Agreement, and with renewal certificates prior to the expiration of any required insurance that expires during the term of this Agreement. Such certificates shall specifically state the inclusion, or the coverages and the provisions set forth herein and shall state whether the coverage is written on a "claims made" or "per occurrence" basis. For any policies written on a "claims made" basis, the necessary retroactive dates and extended reporting periods shall be procured to maintain such continuous coverage. Receipt, review, or acceptance by the District of any insurance policies or certificates of insurance required by this Agreement shall not be construed as a waiver or relieve the Vendor from its obligation to meet the insurance requirements contained herein. Memorandums of Insurance will not be accepted. The Certificate of insurance will be emailed to COI@psdschools.org and the Certificate Holder must be listed as follows:

Poudre School District
2407 LaPorte Avenue
Fort Collins, CO 80521

Commercial General Liability

Minimum Limits

- Each Occurrence Bodily Injury & Property Damage $1,000,000
- General Aggregate $2,000,000
- Coverage must be written on an "occurrence" basis
- Poudre School District R-1 and its elected officials, employees, agents, and volunteers shall be named as an additional insured or covered as an additional insured by way of a blanket endorsement and shall be insured to the full limits of liability purchased by the Vendor even if those limits of liability are in excess of those required by this Agreement.

Automobile Liability Providing Coverage for Owned, Non-Owned, and Leased or Hired Vehicles

- Bodily Injury & Property Damage
  Combined Single Limit Minimum $1,000,000

Professional Liability

Minimum Limits

- Each Occurrence or Wrongful Act Limit $1,000,000
- Annual Aggregate Limit $3,000,000
- Vendor must provide evidence of the extended reporting period coverage at the end of the project and before all final payments to the Vendor is made.

Workers' Compensation and Employers' Liability

Minimum Limits

- State of Colorado Statutory
- Employer's Liability $100,000 Each Accident
  $500,000 Disease – Policy Limit
  $100,000 Disease – Each Employee
- Waiver of subrogation in favor of Poudre School District R-1.

If Vendor is exempt under the Colorado Workers' Compensation Act, this requirement will be waived if the Vendor affirms a Workers' Compensation Coverage Rejection is on file with the Colorado Department of Labor and Employment, Division of Workers' Compensation.